

Shivraj v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 12 March 2021 · Writ-C No. 8952 of 2021 · **Writ disposed; petitioner relegated to object under s.126(3) and cl.8.1(a).**

HEADNOTE

A writ challenging a provisional assessment notice alleging theft, where no objection has been filed, is disposed of by relegating the consumer to the statutory objection under section 126(3) of the Electricity Act, 2003 and clause 8.1(a) of the Electricity Supply Code, 2005. If an objection is filed, the assessing officer must consider every point before the final assessment; any existing final order or recovery is subject to that fresh decision. Default in objecting leaves the licensee free to proceed in accordance with law.

FACTUAL SUMMARY

The petitioner occupied the same house as his mother Urmila Devi, who held a 1 kW domestic connection (No. 6236/781178) for the premises. On 2 May 2019 the distribution licensee issued a provisional assessment show-cause notice alleging theft of electricity. He invoked Article 226 to quash that notice. The petition did not aver that any objection had been filed. Counsel for the licensee had no instructions on whether a final assessment had already been passed.

HOLDING-UNITS

INTERPLAY · EA2003::126(3)

provisional assessment — statutory objection before writ

HOLDING

A consumer who has not objected to a provisional assessment notice alleging theft is relegated to the statutory objection under section 126(3) of the Electricity Act, 2003 read with clause 8.1(a) of the Electricity Supply Code, 2005, rather than a merits writ. If the objection is filed within the time allowed, the assessing officer must consider all points of objection before passing the final assessment; any final assessment already passed or recovery already initiated is subject to that fresh decision. Failure to object leaves the licensee free to proceed in accordance with law. ¶ 1

PRINCIPLE TAGS

premature-writ-against-provisional-s126-assessment The writ against the 2 May 2019 provisional assessment was not decided on the merits because the petitioner had not filed an objection and had a remedy under s.126(3) and cl.8.1(a). ¶ 1

s126-3-hearing-required-before-enforcing-provisional-assessment If an objection is filed within two weeks, respondent no. 2 must consider all points of objection before the final assessment; any existing final order or recovery is subject to that fresh decision. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THEFT OF ELECTRICITY WAS MADE OUT ON THE PREMISES

Writ disposed without examining the allegation in the 2 May 2019 notice. ¶ 1

NOT DECIDED — WHETHER A FINAL ASSESSMENT ORDER HAD ALREADY BEEN PASSED

Counsel for respondent no. 2 had no instructions; any existing final order or recovery was left subject to a fresh decision if an objection was filed. ¶ 1

